Master Services Agreement

This Master Services Agreement (the "Agreement") is entered into with effect from January 5, 2026 (the "Effective Date") between **Seabright Hotels & Resorts Ltd**, a hotel group that owns and operates six hotels (the "Customer"), and **Hearth & Table Foods Inc** (the "Supplier"). The Customer and the Supplier are each a "Party" and together the "Parties".

1. DEFINITIONS AND INTERPRETATION

1.1 In this Agreement:

"Properties" means the six hotels owned and operated by the Customer at which the Services are delivered, and "Property" means any one of them.

"Services" means the supply and delivery of food, beverage and related supplies, and associated services, to the Properties, as ordered by the Customer from time to time under this Agreement.

"Products" means all goods supplied by the Supplier in the course of the Services.

"Annual Fees" means USD 1,250,000 per year, as described in clause 4.

"Initial Term" has the meaning given in clause 2.1.

1.2 Headings are for convenience only and do not affect interpretation. The words "including" and "includes" are not words of limitation.

2. TERM AND RENEWAL

2.1 This Agreement commences on the Effective Date and, unless terminated earlier in accordance with its terms, continues until January 5, 2028, being a period of 24 months (the "Initial Term").

2.2 On expiry of the Initial Term, this Agreement renews automatically for successive periods of 12 months (each a "Renewal Term") unless either Party gives the other at least 45 days' written notice of non-renewal before the end of the then-current Initial Term or Renewal Term.

2.3 The total contract value for the Initial Term is USD 2,500,000.

3. SERVICES AND SCOPE

3.1 The Supplier shall provide the Services to the Properties on the terms of this Agreement. Orders shall be placed by the Customer, or by a Property on the Customer's behalf, in the manner reasonably notified by the Supplier from time to time.

3.2 The Supplier may determine the methods, means, personnel, sourcing and delivery routes by which it performs the Services. Delivery dates and times are estimates only, and the Supplier shall not be in breach of this Agreement by reason of any delay or substitution that is reasonably necessary owing to availability, quality, weather, transport conditions or any other matter outside its reasonable control.

3.3 The Customer shall provide each Property with safe and timely access for delivery, adequate storage facilities meeting applicable food-safety requirements, and such information as the Supplier reasonably requires. The Supplier is not responsible for any failure or delay caused by the Customer's failure to do so.

3.4 The Customer shall inspect Products on delivery and notify the Supplier in writing of any shortage, damage or non-conformity promptly after delivery. Products not so notified are deemed accepted, save for latent defects that could not reasonably have been discovered on inspection.

3.5 Risk in the Products passes to the Customer on delivery to the relevant Property. Title passes on payment in full.

4. FEES, INVOICING AND PAYMENT

4.1 The Customer shall pay the Supplier the Annual Fees of USD 1,250,000 for each year of the term, together with any other amounts payable under this Agreement.

4.2 The Supplier shall invoice the Customer in accordance with its ordinary billing practice. Undisputed invoices are payable within 15 days of receipt of a valid invoice, without set-off, counterclaim or deduction.

4.3 If the Customer disputes any part of an invoice in good faith, it shall notify the Supplier in writing with reasonable particulars before the due date and shall pay the undisputed portion on time. The Parties shall work together promptly to resolve the dispute.

4.4 Late payment shall bear interest at the maximum rate permitted by applicable law from the due date until payment. The Supplier may suspend the Services on written notice while any undisputed amount remains overdue.

4.5 SEASONAL PRICE ADJUSTMENT. The Supplier may adjust prices for seasonal produce once per calendar quarter on 14 days' notice to the Customer. Any such adjustment applies to orders placed after the notice period expires.

4.6 All amounts are exclusive of applicable sales, use, value-added and similar taxes, which the Customer shall bear, other than taxes on the Supplier's net income.

5. FOOD SAFETY AND RECALLS

5.1 The Supplier shall maintain food-safety certification under Hazard Analysis and Critical Control Points (HACCP) throughout the term.

5.2 The Supplier shall notify the Customer of any product recall affecting Products supplied under this Agreement within 24 hours of the Supplier becoming aware of the recall. The Customer shall promptly quarantine affected Products and follow the Supplier's reasonable recall instructions and those of any competent authority.

5.3 Following the notice in clause 5.2, the Parties shall cooperate in good faith in respect of the recall. Nothing in this clause enlarges the Supplier's obligations beyond those expressly stated in this Agreement.

6. CONFIDENTIALITY

6.1 “Confidential Information” means all non-public information disclosed by or on behalf of a Party (the “Discloser”) to the other (the “Recipient”) in connection with this Agreement that is marked confidential or would reasonably be regarded as confidential, including pricing, supplier relationships, recipes, specifications and business plans.

6.2 The Recipient shall keep the Discloser’s Confidential Information confidential, use it only to perform or receive the benefit of this Agreement, and disclose it only to its personnel, affiliates, professional advisers, insurers and subcontractors who need to know it and are bound by equivalent obligations.

6.3 These obligations do not apply to information that is or becomes public other than through breach of this Agreement, was lawfully known to or independently developed by the Recipient, is lawfully received from a third party without restriction, or is required to be disclosed by law, regulation or court order (in which case the Recipient shall, where lawful, give the Discloser prompt notice).

6.4 The obligations in this clause 6 survive for 2 years after this Agreement ends.

7. INTELLECTUAL PROPERTY

7.1 Each Party retains all rights in its pre-existing intellectual property. The Supplier retains all right, title and interest in its recipes, specifications, product formulations, packaging, trade names, trade marks, processes and know-how, and in any improvements to them, whether or not developed for the Customer.

7.2 The Supplier grants the Customer a non-exclusive, non-transferable, royalty-free licence during the term to use the Supplier’s marks and materials solely as necessary to receive and use the Products at the Properties. The Customer shall not use the Supplier’s marks otherwise without prior written consent.

7.3 The Customer grants the Supplier a non-exclusive licence to use the Customer’s name and marks solely to perform the Services.

8. DATA PROTECTION

8.1 The Parties acknowledge that the Services do not involve the processing of personal data by the Supplier on behalf of the Customer.

8.2 Each Party shall not disclose personal data to the other for the purposes of this Agreement, other than business contact details of the Parties’ personnel, which each Party shall handle in accordance with applicable law.

9. WARRANTIES AND DISCLAIMERS

9.1 The Supplier warrants that it will perform the Services with reasonable skill and care. This is the only warranty given in respect of the Services (the “Services Warranty”). No express warranty period applies to the Services or the Products.

9.2 TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, AND EXCEPT AS EXPRESSLY STATED IN CLAUSES 5 AND 9.1, THE SUPPLIER GIVES NO WARRANTIES, CONDITIONS OR REPRESENTATIONS OF ANY KIND, WHETHER EXPRESS, IMPLIED, STATUTORY OR OTHERWISE, AND EXPRESSLY DISCLAIMS ALL IMPLIED WARRANTIES, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, NON-INFRINGEMENT, AND ANY WARRANTY ARISING FROM COURSE OF DEALING OR USAGE OF TRADE.

9.3 Without limiting clause 9.2, the Supplier does not warrant that Products will be available at all times, that supply will be uninterrupted, or that natural products will be uniform in size, colour, flavour or appearance.

9.4 The Supplier is not liable for any non-conformity or loss arising from storage, handling, preparation, cooking, service or use of the Products by or on behalf of the Customer after delivery, from the Customer's failure to follow storage, handling or use-by instructions, or from any specification, menu or allergen information supplied by the Customer.

9.5 Each Party warrants that it has full authority to enter into this Agreement.

10. INSURANCE

10.1 The Supplier shall maintain throughout the term product liability and general liability insurance with cover of at least USD 5,000,000 per claim, with reputable insurers, and shall provide evidence of cover on reasonable written request.

10.2 Maintenance of insurance does not limit or alter either Party's obligations or liabilities under this Agreement.

11. INDEMNITIES

11.1 The Supplier shall indemnify the Customer against third-party claims to the extent arising from (a) bodily injury or illness caused by Products that were contaminated or unsafe when delivered by reason of the Supplier's breach of clause 5, or (b) the Supplier's infringement of a third party's intellectual property by the Products as supplied, in each case subject to clauses 11.3 and 11.4.

11.2 The Customer shall indemnify the Supplier against third-party claims to the extent arising from (a) the Customer's storage, handling, preparation, service or use of the Products after delivery, (b) specifications, menus, allergen information or instructions supplied by the Customer, or (c) the Customer's breach of this Agreement or negligence or wilful misconduct, including that of the Properties' personnel.

11.3 The indemnified Party shall give prompt written notice of the claim, allow the indemnifying Party sole control of its defence and settlement, and provide reasonable assistance at the indemnifying Party's cost. Failure to do so relieves the indemnifying Party of its obligations to the extent it is prejudiced.

11.4 The Supplier has no obligation under clause 11.1 to the extent a claim arises from the matters in clause 11.2 or from modification, combination or misuse of the Products by anyone other than the Supplier.

12. LIABILITY

12.1 Each Party's liability under or in connection with this Agreement, whether in contract, tort (including negligence), breach of statutory duty or otherwise, is unlimited. No monetary cap applies to either Party's liability.

12.2 Nothing in this Agreement excludes or limits any liability that cannot be excluded or limited under applicable law.

12.3 Subject to clauses 12.1 and 12.2, neither Party is liable for loss that was not reasonably foreseeable at the Effective Date as a probable consequence of the relevant breach.

12.4 The Supplier is not liable for any loss or delay caused by events beyond its reasonable control, as described in clause 15.

13. TERMINATION

13.1 Neither Party may terminate this Agreement for convenience. This Agreement may be terminated only for cause in accordance with this clause 13.

13.2 Either Party may terminate this Agreement by written notice with immediate effect if the other Party:

(a) commits a material breach that is incapable of remedy; or commits a material breach that is capable of remedy and fails to remedy it within 30 days of written notice requiring remedy; or

(b) becomes insolvent, makes an assignment for the benefit of creditors, has a receiver or administrator appointed, or is the subject of bankruptcy or winding-up proceedings.

13.3 Non-payment of undisputed sums for 15 days after written notice of non-payment constitutes a material breach by the Customer for the purposes of clause 13.2(a).

13.4 Non-renewal under clause 2.2 is not termination for convenience.

13.5 On expiry or termination, the Customer shall pay all amounts accrued or invoiced up to the date of termination, and any Products ordered and in transit shall be paid for. Clauses 1, 4 (as to accrued sums), 6, 7, 9, 11, 12, 14, 16 and 17, and any other provisions intended to survive, survive expiry or termination. Termination does not affect accrued rights.

14. GOVERNING LAW AND DISPUTES

14.1 This Agreement and any dispute or claim arising out of or in connection with it (including non-contractual disputes) are governed by the laws of California, without regard to its conflict-of-laws principles.

14.2 The Parties shall first attempt to resolve any dispute through good-faith negotiation between senior representatives. If not resolved within a reasonable period, either Party may commence proceedings in the state or federal courts located in California, to whose jurisdiction the Parties irrevocably submit.

14.3 Nothing in this clause prevents a Party from seeking urgent injunctive relief.

15. FORCE MAJEURE

15.1 The Supplier is not in breach of this Agreement and has no liability for any failure or delay in performance caused by events beyond its reasonable control, including crop failure, adverse weather, disease, epidemic, contamination of supply, supplier failure, shortage of materials or transport, labour disputes, fire, flood, governmental action, cyber-attack, and failure of utilities or telecommunications.

15.2 The Supplier shall use reasonable efforts to resume performance, and the Customer may source substitute supplies for the affected Products during the period of delay.

16. ASSIGNMENT AND SUBCONTRACTING

16.1 The Customer may not assign, transfer or subcontract any of its rights or obligations under this Agreement without the Supplier's prior written consent.

16.2 The Supplier may subcontract any part of the Services, including delivery, and may assign this Agreement to an affiliate or to a successor to all or substantially all of its relevant business, on written notice to the Customer. The Supplier remains responsible for subcontractors' performance subject to the terms of this Agreement.

17. GENERAL

17.1 NOTICES. Notices under this Agreement must be in writing and delivered by hand, by recognised courier or by registered mail to the addresses last notified by each Party in writing, or by email to the address so notified, and are deemed received on delivery (or, if sent by email, on the next business day after transmission absent a delivery-failure message).

17.2 ENTIRE AGREEMENT. This Agreement constitutes the entire agreement between the Parties on its subject matter and supersedes all prior negotiations, representations, understandings and agreements. Each Party acknowledges that it has not relied on any statement not set out in this Agreement. The Customer's purchase-order terms and any other standard terms of the Customer are excluded and have no effect.

17.3 AMENDMENT AND WAIVER. This Agreement may be amended only in writing signed by both Parties. No failure or delay in exercising a right operates as a waiver.

17.4 SEVERABILITY. If any provision is held invalid or unenforceable, it shall be enforced to the maximum extent permitted and the remainder of this Agreement is unaffected.

17.5 RELATIONSHIP. The Parties are independent contractors. Nothing creates a partnership, agency or employment relationship, and there are no third-party beneficiaries of this Agreement.

17.6 COUNTERPARTS. This Agreement may be executed in counterparts and by electronic signature, each of which is an original and all of which together constitute one instrument.

18. EXECUTION

This Agreement has been executed by the Parties' authorised representatives.

Signed for and on behalf of Seabright Hotels & Resorts Ltd

Signature: _____

Name: Michael Brennan

Title: Chief Procurement Officer

Date: December 26, 2025

Signed for and on behalf of Hearth & Table Foods Inc

Signature: _____

Name: Daniel Okafor

Title: Authorised Signatory

Date: December 29, 2025